



**HIGH COURT OF JUDICATURE AT ALLAHABAD
LUCKNOW**

WRIT - C No. - 8177 of 2025

Gyan Prakash Gupta

.....Petitioner(s)

Versus

Madhyanchal Vidyut Vitran Nigam Ltd. Thru.
Its Managing Director Lko. And 4 Others

.....Respondent(s)

Counsel for Petitioner(s) : Vijay Prakash Chaurasia, Nisha
Tiwari
Counsel for Respondent(s) : Aprajita Bansal

Court No. - 2

**HON'BLE MRS. SANGEETA CHANDRA, J.
HON'BLE BRIJ RAJ SINGH, J.**

1. Heard learned counsel for the petitioner and Ms. Shreya Phawa, Advocate holding brief of Ms. Aprajita Bansal, learned counsel for the respondents.

2. This writ petition has been filed with the following prayers:-

"i. Issue a writ, order or direction in the nature of Certiorari quashing the impugned electricity bill dated 06.07.2022 issued by the opposite parties being excessive and arbitrary.

ii. Issue a writ, order or direction in the nature of Mandamus directing opposite party no. 4 to restore the electricity connection of the petitioner disconnected on 13.09.2022;

iii. Issue a writ, order or direction in the nature of Mandamus directing opposite party no. 2 to decide the representation dated 23.12.2023 by a reasoned and speaking order giving computation of the electricity bill, in compliance with the order dated 19.12.2023 passed in Writ-C No. 11150 of 2023;

iv. Issue a writ, order or direction in the nature of Mandamus directing opposite party no. 5 to issue a fresh and corrected electricity bill after adjusting the amount of dues already paid by

the petitioner under the One Time Settlement Scheme for bill dues upto 30.09.2021;"

3. Learned counsel for the respondents has informed this Court that the petitioner had earlier approach this Court in Writ-C No. 11150 of 2023, 'Gyan Prakash Gupta Vs. Managing Director, MVVNL and Others', saying that his electricity connection was disconnected on 13.09.2022 due to certain illegal bills raised against the petitioner. Certain orders were passed by the respondents, but the petitioner's objections have not been considered by the Executive Engineer. The Court had disposed of the petition directing the petitioner to move a fresh representation/objection under Rule 6.5 of the Electricity Supply Code within a period of two weeks from the date of passing of the order and the Executive Engineer had to consider and decide the same within a further period of four weeks. After this order was passed on 19.12.2023, the petitioner has filed his representation, which has also been rejected, a copy of the rejection order dated 23.01.2024 has been produced before this Court. It refers to a checking report submitted by the enforcement team and the Sub-Divisional Officer and Junior Engineer that the petitioner refuses to show his meter to such team, and therefore, without their being any actual meter reading being done the billing dispute cannot be resolved. In fact since 2012, the petitioner has not let the employees of the MVVNL to enter his premises to check his meter and bills are being generated in a routine manner under category "IDF". Executive Engineer has requested the petitioner to allow the team from the Enforcement Cell to take actual meter reading of the petitioner's premises to enable fresh electricity bill to be generated on the basis of such actual meter reading. This letter dated 23.01.2024 was sent through India Post on 24.01.2024 to the petitioner at his address.

4. Learned counsel for the petitioner says that since there is no tracking report enclosed to the said instructions, it cannot be said that delivery of such order dated 23.01.2024 actually did take place

at the petitioner's premises.

5. Be that as it may, since the petitioner has challenged an electricity bill dated 06.07.2022; let the counter affidavit be filed in the matter within four weeks.

6. List this case on 25.09.2025.

August 28, 2025

Darpan Sharma

(Brij Raj Singh,J.) (Mrs. Sangeeta Chandra,J.)



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Counsel for Respondent(s)	: Aprajita Bansal

Court No. - 3

**HON'BLE SHEKHAR B. SARAF, J.
HON'BLE PRASHANT KUMAR, J.**

1. Learned counsel for the petitioner submits that counter affidavit in this case has not yet been filed by the respondents in spite of order having been passed for filing of the counter affidavit on August 28, 2025.
2. In light of the same, time to file counter affidavit is extended by three weeks. Rejoinder affidavit, if any, may be filed within one week thereafter.
3. List this case on December 12, 2025 at 02:15 p.m. within top ten cases.
4. It is made clear that this order is peremptory in nature and no further time shall be granted for filing the counter affidavit.

(Prashant Kumar,J.) (Shekhar B. Saraf,J.)

November 12, 2025

Anupam S/-



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Counsel for Respondent(s)	:	Aprajita Bansal

Court No. - 3

**HON'BLE SHEKHAR B. SARAF, J.
HON'BLE MANJIVE SHUKLA, J.**

1. List this case on 17.12.2025 at 2.15 p.m.

(Manjive Shukla,J.) (Shekhar B. Saraf,J.)

December 12, 2025

Renu/-



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Counsel for Respondent(s)	:	Aprajita Bansal

Court No. - 3

**HON'BLE SHEKHAR B. SARAF, J.
HON'BLE MANJIVE SHUKLA, J.**

1. List/Put up this case on **12.01.2026, at 02:15 PM.**

December 17, 2025
Lokesh Kumar

(Manjive Shukla,J.) (Shekhar B. Saraf,J.)



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Tiwari
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Court No. - 3

**HON'BLE SHEKHAR B. SARAF, J.
HON'BLE MANJIVE SHUKLA, J.**

1. None appears on behalf of the petitioner.
2. Accordingly, **list this matter on January 27, 2026.**
3. It is made clear that this case shall not be listed within top ten cases.

January 12, 2026
cks/-

(Manjive Shukla,J.) (Shekhar B. Saraf,J.)